CHAPTER 49 National Commission for STs

Like the National Commission for Schedules Castes (SCs), the National Commission for Scheduled Tribes (STs) is also a constitutional body in the sense that it is directly established by Article 338-A of the Constitution.

SEPARATE COMMISSION FOR STs

The National Commission for SCs and STs came into being consequent upon passing of the 65th Constitutional Amendment Act of 1990[1]. The Commission was established under Article 338 of the Constitution with the objective of monitoring all the safeguards provided for the SCs and STs under the Constitution or other laws.

Geographically and culturally, the STs are different from the SCs and their problems are also different from those of SCs. In 1999, a new Ministry of Tribal Affairs was created to provide a sharp focus to the welfare and development of the STs. It was felt necessary that the Ministry of Tribal Affairs should co-ordinate all activities relating to the STs as it would not be administratively feasible for the Ministry of Social Justice and Empowerment to perform this role[2].

Hence, in order to safeguard the interests of the STs more effectively, it was proposed to set up a separate National Commission for STs by bifurcating the existing combined National Commission for SCs and STs. This was done by passing the 89th Constitutional Amendment Act of 2003[3]. This Act further amended Article 338 and inserted a new Article 338-A in the Constitution.

The separate National Commission for STs came into existence in 2004. It consists of a chairperson, a vice-chairperson and three other members. They are appointed by the President by warrant under his/her hand and seal. Their conditions of service and tenure of office are also determined by the President. Under the Rules[4] made by the President, they hold office for a term of three years. They are not eligible for appointment for more than two terms.

FUNCTIONS

The functions of the Commission are:

1. To investigate and monitor all matters relating to the constitutional and other legal safeguards for the STs and to evaluate their working;

2. To inquire into specific complaints with respect to the deprivation of rights and safeguards of the STs;

3. To participate and advise on the planning process of socio-economic development of the STs and to evaluate the progress of their development under the Union or a state;

4. To present to the President, annually and at such other times as it may deem fit, reports upon the working of those safeguards;

5. To make recommendations as to the measures that should be taken by the Union or a state for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the STs; and